

PCU330357 MENDOZA, JOSE vs. LONG, WILLIAM B. et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-09-22

Motion: Plaintiff's Motion to Compel Further Responses to RFA Nos. 19 and 20

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Re: MENDOZA, JOSE vs. LONG, WILLIAM B. et al

Case No.: PCU330357

Date: September 22, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Plaintiff's Motion to Compel Further Responses to RFA Nos. 19 and 20

Tentative Ruling: To grant the motion and compel further responses no later than thirty (30) days from the date of this hearing; to impose sanctions against Defendant Three Cat, and its counsel of record, jointly and severally, in the amount of \$585, due no later than thirty days from the date of this hearing.

Facts

In this Unruh Act and Civil Code section 54.1 matter, Plaintiff sues, amongst others, Defendant Three Cat Express, Inc.

On June 5, 2026, Plaintiff served written discovery upon Defendant Three Cat Express, Inc., including Requests for Admissions, Set One.

On June 29, 2026, Defendant served responses to Plaintiff's Requests for Admission, Set One.

The parties met and conferred and Defendant, on or about July 24 2026, served supplemental responses to Nos. 19 and 20.

Plaintiff continued to meet and confer on or about July 31, 2026 as to further supplemental responses to Nos. 19 and 20. However, further meet and confer correspondence did not lead to further supplemental responses to Nos. 19 and 20.

This motion to compel further responses to Nos. 19 and 20 followed. Plaintiff further seeks sanctions in the amount of \$2,860.

No opposition appears filed.

Authority and Analysis

Code of Civil Procedure section 2033.220 requires:

(a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits.

(b) Each answer shall:

(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.

(2) Deny so much of the matter involved in the request as is untrue.

(3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

A party may move for an order compelling further response to a request for admission or request for production of documents if the demanding party deems that responses are incomplete, evasive, or contain meritless objections. (Code Civ. Proc., § 2033.290, subd. (a).) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the discovery. (Coy v. Sup.Ct. (Wolcher) (1962) 58 Cal.2d 210, 220-221; Fairmont Ins. Co. v. Sup.Ct. (Stendell) (2000) 22 Cal.4th 245, 255.)

RFA No. 19

RFA No. 19 states:

“Admit that currently, the parking stall at the SUBJECT PROPERTY does not have a marked and reserved access aisle adjacent to the stall for use by persons with disabilities.”

Defendant's supplemental response states:

Objection. This request is vague, ambiguous, and overbroad. This request assumes facts, seeks expert opinion testimony, and seeks a legal conclusion from Responding Party. This request seeks an admission regarding facts that are not reasonably calculated to lead to the discovery of admissible evidence. This request seeks Responding Party to admit the truth or falsity of hearsay; and is an incomplete hypothetical. Subject to and without waiving the foregoing objections, Responding Party responds as follows: Admit in part”

Plaintiff argues this response as to “admit in part” is insufficient because it fails to identify the portion of the response that is admitted and the portion that is denied.

The Court agrees that the response must identify what portion of the request is admitted and which part is denied.

RFA No. 20

RFA No. 20 states:

"Admit that currently, the mandated pole or wall mounted signage that displays the International Symbol of Accessibility does not exist at the SUBJECT PROPERTY."

Defendant's supplemental responses states:

"Objection. This request is vague, ambiguous, and overbroad. This request assumes facts, seeks expert opinion testimony, and seeks a legal conclusion from Responding Party. This request seeks an admission regarding facts that are not reasonably calculated to lead to the discovery of admissible evidence. This request seeks Responding Party to admit the truth or falsity of hearsay; and is an incomplete hypothetical. Subject to and without waiving the foregoing objections, Responding Party responds as follows: Admit in part."

Under the same reasoning above, the Court agrees that the response must identify what portion of the request is admitted and which part is denied.

Sanctions

Code of Civil Procedure section 2023.030 is a general statute authorizing the Court to impose discovery sanctions for "misuse of the discovery process," which includes (without limitation) a variety of conduct such as: making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to discovery; and unsuccessfully and without substantial justification making or opposing a motion to compel or limit discovery. (Code Civ. Proc. § 2023.010.)

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or requests unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make it unjust to impose sanctions. (Code Civ. Proc., § 2023.290(d).)

Here, Plaintiff seeks \$2,860 in sanctions at the rate of \$400 per hour consisting of 3 hours of meet and confer time, 2 hours drafting the motion and 2 hours anticipated for review of the opposition and reply. Additionally, Plaintiff seeks a \$60 filing fee.

To start, the Court sets the hourly rate at \$350. The reasonable hourly rate is that prevailing in the community for similar work." (PLCM Group Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.) "The experienced trial judge is the best judge of the value of professional services rendered in his court." (Id.)

The Court will deduct, in total, the meet and confer time of 3 hours and permit 1.5 hours on this motion in total, plus the \$60 filing fee. As such, the Court will order sanctions against Defendant Three Cat, and its counsel of record, jointly and severally, in the amount of \$585, due no later than thirty days from the date of this hearing.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the

proceedings.